IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT – II)

Item No. 205
(CAA)-56/ND/2022

IN THE MATTER OF:
Prem Industries India Ltd. ... Applicant/Petitioner

Under Section: 230-232

Order delivered on 08.12.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. ATUL CHATURVEDI, HON'BLE MEMBER (T)

PRESENT:

For the Applicant	**:**	Mr. Rishabh Jain, Advocate
For the IT Dept.	**:**	Adv. Abhishek Maratha and Parth Semwal Standing Counsels with Adv Utkarsh
For the RD	**:**	Adv Niharika Tanwar
For the OL	**:**	Adv. Tanuja Rawat

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

Ld. Counsel appearing for the RD could draw our attention to the report of RD and submitted that the Transferor company has taken huge loans from individual so it may be asked for compliance of the provision regarding acceptance of deposits. It is also the plea raised by the ARoC that the loan procured is being used for investing in land and therefore the reason for the merger is simply to transfer the fixed assets of the Transferee company to the Transferor company. This Special Bench is assembled only for half day. Let the petition be listed to routine bench on 05.01.2024.

List on 05.01.2024.

Sd/-
(ATUL CHATURVEDI)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)